

1 SENATE BILL NO. 375

2 INTRODUCED BY M. NOLAND

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO THE SALE OF HEMP
5 PRODUCTS; PROHIBITING THE SALE OF EDIBLE HEMP; PROVIDING A DEFINITION; AND PROVIDING
6 AN IMMEDIATE EFFECTIVE DATE."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. Section 1. Sale of edible hemp prohibited. (1) Unless authorized as a drug by the
11 United States food and drug administration, an edible product containing hemp may not be sold in the state.

12 (2) (a) For the purposes of this section, "hemp" means the plant species *Cannabis sativa* L. and
13 any part of that plant, including the seeds and all derivatives, extracts, cannabinoids, isomers, acids, salts, and
14 salts of isomers, whether growing or not.

15 (b) The term does not include synthetic cannabinoids.
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17 NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an
18 integral part of Title 50, chapter 31, part 2, and the provisions of Title 50, chapter 31, part 2, apply to [section 1].
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20 NEW SECTION. Section 3. Effective date. [This act] is effective on passage and approval.

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